Biswari Mukherjee vs State Of Nct Of Delhi on 1 September, 2023

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1881/2023
BISWARI MUKHERJEE
Through:

versus
STATE OF NCT OF DELHI
Through:

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
ORDER

% 01.09.2023

1. The present application under Section 439 read with Section 482 of the Cr.P.C. seeks regular bail in case FIR No. 545/2021 under Sections 420/408/467/468/471 of the IPC registered at P.S. Punjabi Bagh.

2. The case of the prosecution is that the present FIR was registered on a complaint on behalf of Punjab and Sindh Bank, wherein it is alleged that between the period from 29.08.2019 to 18.11.2019, the present applicant was entrusted with the job of „Single Window Operator at the Punjabi Bagh Branch of Punjab and Sindh Bank and she dealt with transactions of cash deposits and withdrawals by customers of the bank. It is alleged that Guru Harkrishan Public School, which was a customer of the complainant bank had deposited cash amounts with the said branch, however, the said transactions were not reflected in the account of the said customer, and therefore a complaint was made to the bank. It is further alleged that the complainant bank had conducted a fact-finding inquiry, wherein it was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 16/09/2023 at 15:46:21 revealed that the present applicant had issued cash vouchers to the aforesaid customer school, however, some of the vouchers were not entered into the bank s system and some had been entered with lesser amounts. It is alleged that total sum of Rs.72,03,947/- was not deposited in the customer account and therefore, the bank suffered a loss to the tune of the aforesaid amount.

3. During the course of investigation, it has come on record that a sum of Rs. 10,70,000/- in cash and Rs. 4, 48,000/- through RTGS had been credited in the joint account of the present applicant and her son. It is further stated that some gold ornaments were recovered from the locker of the present applicant, which is stated to be purchased from the aforesaid embazelled amount.

4. Learned counsel for the applicant submits that the applicant was a „Single Window Operator and as per the circular of the Punjab and Sindh Bank dated 18.06.2012, the limit of handing the cash was Rs. 10,000/-. It is submitted that the present applicant has been made a scapegoat as the bank has nobody else to blame for the aforesaid fault on their part. It is further alleged that no investigation has been done with respect to other employees of the bank at the relevant time. It is further urged that the applicant had surrendered herself and after completion of investigation, chargesheet has been filed. The applicant has been in custody since 23.02.2023. It is further pointed out that present applicant suffers from hypertension. Attention of this Court is drawn to the Medical Report dated 24.03.2023 received vide communication dated 13.07.2023 from the Office of Superintendent, Central Jail No.6, Tihar, New Delhi, wherein it has been stated that the applicant's blood pressure was high and the Duty Doctor increased the dose of Anti- Hypertensive medication and advised BP Charting. In the said report, it has This is a digitally signed order.

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5. Per contra, learned APP for the State assisted by learned counsel for the complainant submits that the present applicant has committed a huge fraud to the extent of Rs. 72,03,947/-. She was the primary person responsible for accepting the cash amount of the employees of the school, which she embezzled and thereafter the said amount came in her account as the account of her son. It is further submitted that the applicant did not cooperate during the course of investigation and that the investigation is still continuing qua the son of the applicant, who is absconding and qua a bank officer, namely, Balram Reddy. The application is opposed on the ground that applicant will tamper with the evidence and influence the witness if she is released on bail.

6. Heard learned counsel for the parties and perused the record.

7. The applicant was admittedly an employee with the complainant bank, who at the relevant point of time was incharge of the accepting cash deposits of the school. As per the status report, the evidence which is primarily documentary in nature has been collected by the Investigating Officer and the chargesheet stands filed. Therefore, the possibility of tampering with the evidence is remote. It is pointed out that the trial is at the stage of consideration on point of charge, 29 witnesses have been cited by the prosecution and the trial is likely to take a long time. The present applicant is stated to be aged about 47 years and as per the medical report received, she suffers from hypertension, as pointed out hereinabove.

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8. In totality of the facts and circumstances of the case, the present application is allowed. The applicant is directed to be released on bail, on his furnishing a personal bond of Rs. 50,000/- with two sureties of like amount, to the satisfaction of the learned Trial Court/Link Court, further subject to following conditions:

> i. The applicant shall not leave NCT of Delhi without prior permission of the learned Trial Court.
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> ii. The applicant shall intimate the learned Trial Court by way of an affidavit and to the Investigating Officer regarding any change in residential address.
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> iii. The applicant shall appear before the learned Trial Court as and when the matter is taken up for hearing.
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> iv. The applicant is directed to give his mobile number to the Investigating Officer and keep it operational at all times. v. The applicant shall not, directly or indirectly, tamper with evidence or try to influence the witness in any manner.

9. The application is allowed and disposed of accordingly.

10. Pending application, if any, also stand disposed of.

11. Needless to state that nothing stated hereinabove is an opinion on the merits of the case.

12. Copy of the order be sent to the concerned Jail Superintendent for necessary information and compliance.

13. Order be uploaded on the website of this court forthwith.

AMIT SHARMA, J SEPTEMBER 1, 2023/nk This is a digitally signed order.

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